

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Application for Orders in the nature of Writs of Certiorari, Prohibition and Mandamus under Article 140 of the Constitution of the Democratic Socialist Republic of Sri Lanka.

CA (Writ) Application No: 227/2016

1. Mathugma Widaneralalage
Kumalasiri Mathugama
Udawela Road, Matiyagane.
2. Palitha Priyantha Samarasekara Wellage,
No. 8H, Dadalla Cross Road, Galle.
3. Wijethunga Mudiyansele Chandrapala,
No. 12/11 A, Hingurugamuwa Road,
Oyewatta, Badulla.
4. Konara Mudiyansele Nimal Karunathilleke,
No. 67, Jayasenagama,
Kumbukkana, Monaragala.
5. Daunda Mudiyansele Ashoka Kumara,
No. 452, Ekamuthugama, Uhan, Ampara.

PETITIONERS

Vs.

1. Sri Lanka Transport Board.
2. Ramal Siriwardane,
Chairman,
Sri Lanka Transport Board.
- 2A. Kingsley Ranawaka,
Chairman,
Sri Lanka Transport Board.
3. P.D. Balasooriya,

Chief Executive Officer,
Sri Lanka Transport Board.

4. Indika Kulathilake,
Deputy General Manager (Administration),
Sri Lanka Transport Board.

5. P.P. Peiris,
Chief Human Resources Manager,
Sri Lanka Transport Board.

5A. H.P.S. Walgmpaya,
Chief Human Resources Manager,
Sri Lanka Transport Board.

1st, 2nd, 2A, 3rd – 5th, 5A Respondents at 200,
Kirula Road,
Narahenpita, Colombo 5.

6. W.D. Wasantha,
Chief Regional Manager (Ruhuna)
Regional Office,
Sri Lanka Transport Board, Magalla, Galle.

6A. R. A. P. Kumara,
Chief Regional Manager (Ruhuna Region)
Regional Office (Ruhuna),
Sri Lanka Transport Board, Magalla, Galle.

7. D.M.D. Dissanayake,
Chief Regional Manager Nuwara Eliya,
Regional Office, Sri Lanka Transport Board,
Atabage, Dalpitiya.

8. Nihal Somaweera,
Secretary,
Ministry of Transport and Civil Aviation.

8A. P. S Widanage,
Secretary,
Ministry of Transport and Civil Aviation,

8B. H.M. Gamini Seneviratne,

Secretary,
Ministry of Passenger Transport
Management.

9. Nimal Siripala De Silva,
Minister of Transport and Civil Aviation

8, 8A and 9th Respondents at No. 01, D.R.
Wijewardena Mawatha, Colombo 10.

- 9A. Mahinda Amaraweera,
Ministry of Passenger Transport
Management.
8B and 9A Respondents at 7th Floor, Stage II,
Sethsiripaya, Battaramulla.

10. S.D. Sunil,
Gampaha Depot,
Sri Lanka Transport Board, Warallawatta,
Gampaha.

11. Chinthaka Devinda Godage,
Galle Depot,
Sri Lanka Transport Board, Galle.

12. G.H. Nimal De Silva,
Badulla Depot,
Sri Lanka Transport Board, Badulla.

13. R.M. Athulya Thushara Chaminda,
Monaragala Depot,
Sri Lanka Transport Board, Monaragala.

14. Anura Dodanthanna,
Hatton Depot,
Sri Lanka Transport Board, Hatton.

RESPONDENTS

Before: **Mahinda Samayawardhena, J**
Arjuna Obeyesekere, J

Counsel: Saliya Peiris, P.C., with Thishya Weragodoa and Pulasthi Rupesinghe for the Petitioners

Lal Wijenayake with Ranjith Ranawaka for the 1st – 5th Respondents

Pasindu Silva with Kavindu Geeganage for the 6th, 9th, 10th, 12th, 14th – 17th Respondents

Ms. Yuresha Fernando, Senior State Counsel for the 7th and 8th Respondents

Argued on: 30th June 2020

Decided on: 11th September 2020

Arjuna Obeyesekere, J

This matter was taken up for argument together with CA (Writ) Application No. 223/2016. All learned Counsel agreed that this Court can determine CA (Writ) Application No. 223/2016, and that all parties to this application will be bound by the judgment that would be made in CA (Writ) Application No. 223/2016.

By the judgment delivered today in CA (Writ) Application No. 223/2016, I have refused the relief prayed for by the Petitioners in the said application, and dismissed the said application, without costs. Hence, in view of the aforementioned agreement of the parties, this application must also stand dismissed, without costs.

Judge of the Court of Appeal

Mahinda Samayawardhena, J

I agree

Judge of the Court of Appeal